

DISSENTING OPINION BY M. NEGULESCO.

[*Translation.*]

I, the undersigned, am unable to concur with the opinion of the majority, on the following grounds :

By a Resolution of December 9th, 1926, the Council of the League of Nations requests the Court to give an advisory opinion upon three questions relating to the jurisdiction of the European Commission of the Danube in accordance with the terms of an Agreement which was entered into on September 18th, 1926, between France, Great Britain and Italy, on the one hand, and Roumania on the other, without prejudice to the negotiations at present proceeding between these Powers before the Technical and Advisory Committee of the League of Nations.

The questions submitted to the Court for advisory opinion are as follows :

“(1) Under the law at present in force, has the European Commission of the Danube the same powers on the maritime sector of the Danube from Galatz to Braila as on the sector below Galatz? If it has not the same powers, does it possess powers of any kind? If so, what are these powers? How far upstream do they extend?

(2) Should the European Commission of the Danube possess either the same powers on the Galatz-Braila sector as on the sector below Galatz, or certain powers, do these powers extend over one or more zones, territorially defined and corresponding to all or part of the navigable channel to the exclusion of other zones territorially defined, and corresponding to harbour zones subject to the exclusive competence of the Roumanian authorities? If so, according to what criteria shall the line of demarcation be fixed as between territorial zones placed under the competence of the European Commission and zones placed under the competence of the Roumanian authorities? If the contrary is the case, on what non-territorial basis is the exact dividing line between the respective competence of the European Commission of the Danube and of the Roumanian authorities to be fixed?

(3) Should the reply given in (1) be to the effect that the European Commission either has no powers in the

Galatz-Braila sector, or has not in that sector the same powers as in the sector below Galatz, at what exact point shall the line of demarcation between the two régimes be fixed?"

The first question comprises the two following points:

(a) Has the European Commission of the Danube, under the "law at present in force", the same powers on the Galatz-Braila sector as on the sector below Galatz?

(b) If it has not the same powers, does it possess powers of any kind? If so, what powers? How far upstream do they extend?

The second and third questions are subsidiary in character; one consists in an endeavour to find the dividing line between the powers of the European Commission and those of the Roumanian territorial authorities if the two jurisdictions do not apply to the same part of the river; the other, in an endeavour to determine whether, if the two jurisdictions apply to the same part, it is possible to find criteria for fixing a line of demarcation between the two régimes.

The "law in force" in conformity with which the Court must reply in the first place to the questions submitted is the Statute of the Danube of July 23rd, 1921.

Articles 6 and 9 of the Statute, when taken together, lead to the inference that the jurisdiction of the European Commission extends from above Braila down to the mouths of the river. But Articles 5, 6 and 41 of the Statute show that, in order to determine the limits of the jurisdiction of the European Commission upon the sector in dispute, the *de facto* situation before the war must be considered, as well as the international treaties and instruments relating to the Danube and its mouths.

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The fundamental principles relating to freedom of navigation upon rivers which form the boundaries between or cross several countries, and which are called "international rivers", were laid down in the provisions of the Act of the Congress of Vienna, from Article 108 to 117 inclusive.

In Article 109 it is stated that navigation "shall be entirely free, and shall not, in respect to commerce, be prohibited

to any one, it being understood that the regulations established with regard to the police of this navigation shall be respected, that they will be framed alike for all, and as favourable as possible to the commerce of all nations”.

Article 116 is as follows :

“Everything expressed in the preceding articles shall be settled by a general arrangement, in which there shall also be comprised whatever may need an ulterior determination. The arrangement once settled shall not be changed but by and with the consent of all the States bordering on rivers, and they shall take care to provide for its execution with due regard to circumstances and locality.”

In the Treaty of Paris of March 30th, 1856, the principles sanctioned by the Act of the Congress of Vienna are applied to the Danube. Article 15 provides that :

“The Act of the Congress of Vienna, having established the principles intended to regulate the navigation of rivers which separate or traverse different States, the contracting Powers stipulate among themselves that those principles shall in future be equally applied to the Danube and its mouths. They declare that this arrangement henceforth forms a part of the Public Law of Europe, and take it under their guarantee.”

The Treaty of Paris sets up two Commissions on the Danube, one being the European Commission, down to the mouths of the Danube (Article 16), and the other being the River Commission for the remaining part of the river (Article 17).

The European Commission, consisting of the seven Great Powers who signed the Treaty of Paris, namely Great Britain, Austria, France, Prussia, Russia, Sardinia and Turkey, was “charged to designate and to cause to be executed the works necessary below Isaktcha, to clear the mouths of the Danube, as well as the neighbouring parts of the sea, from the sands and other impediments which obstruct them, in order to put that part of the river and the said parts of the sea in the best possible state for navigation”.

The River Commission charged with securing the navigation of the river consisted of the riparian States, namely : Austria,

Bavaria, the Sublime-Porte and Wurtemberg, to whom were to be added Commissioners from the three Danubian Principalities, whose nomination should have been approved by the Porte.

Under the Treaty of Paris, the powers of the European Commission are of a purely technical character, and it has never been claimed that this implied powers of a juridical character. The latter powers belonged to the territorial authorities. Article 8 of the Public Act of Galatz of November 2nd, 1865, leaves no doubt on this point.

The powers of the European Commission, which were to have come to an end in 1858, were successively prolonged. The London Conference of 1871 prolonged these powers for a further period of twelve years up to April 24th, 1883.

The Treaty of Berlin of July 13th, 1878, concluded between Germany, Austria-Hungary, France, Great Britain, Italy, Russia and the Ottoman Empire, extended the powers of the European Commission, on which Roumania was represented, from Isaktcha as far as Galatz, and it laid down that these powers should be exercised "in complete independence of the territorial authority" (Article 53).

It was further specified in Article 53 that treaties, arrangements, acts and decisions relating to the European Commission's rights, privileges, prerogatives and obligations were confirmed.

In pursuance of Article 54, the Powers were to come to an understanding, one year before the expiration of the term assigned for the duration of the European Commission, as to the "prolongation of its powers or the modifications which they may consider necessary to introduce".

Article 55 provided that the regulations respecting fluvial navigation, from the Iron Gates to Galatz, should be drawn up by the European Commission, assisted by delegates of the Riverain States.

In order to insure the execution of the powers of the European Commission, it was specifically stated in Article 52 that the *stationnaires* of the Powers at the mouths of the Danube might ascend the river as far as Galatz.

For the purpose of harmonizing the Public Act of Galatz of 1865, which regulated the powers of the European Commission

with the new provisions of the Treaty of Berlin, Germany, France, Great Britain, Italy, Roumania, Russia and Turkey, on May 28th, 1881, signed at Galatz the Additional Act to the Public Act of Galatz of 1865. In the first article of this Act it is specifically laid down that "the rights . . . such as they have been established . . . by the treaties . . . as well as by the acts . . . prior [to the Treaty of Berlin] . . . shall continue to govern its relations with the new Riverain States and their effect shall extend as far as Galatz".

The signatory Powers of the Treaty of Berlin concluded the Treaty of London of March 10th, 1883, without the co-operation of Roumania. By that Treaty the jurisdiction of the European Commission was extended from Galatz to Braila (Article 1) and its powers were prolonged for a period of twenty-one years, dating from April 24th, 1883. At the expiration of this period the powers of the Commission were to be continued in force by tacit prolongation (*tacite reconduction*).

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It has been asserted that the extension of the European Commission's powers as far as Braila was proclaimed by the Treaty of London of 1883 and that if Roumania, which had been a sovereign State since 1878, was not summoned to take part in the Conference, this was because the Treaty of Berlin gave the Powers the right to act without the co-operation of Roumania.

It is beyond doubt that, at the time of the Treaty of Berlin, Roumania was not a Turkish province, but a State under Turkish suzerainty. This results from Articles 22 and 23 of the Treaty of Paris.

By virtue of her rights of suzerainty, Turkey might represent Roumania as regards foreign relations. By the Treaty of San Stefano, March 3rd, 1878, Turkey, having been defeated by Russia and Roumania, agreed in Article 5 to abandon her rights as suzerain. The Treaty of San Stefano was submitted for ratification to the Powers assembled at the Conference of Berlin, in 1878.

If the Treaty of San Stefano changed Roumania's position, she should have been invited to take her seat with the other Powers on a footing of equality. If, on the contrary, in spite of that Treaty, Roumania was considered to be under Turkish suzerainty, she was represented by the Sublime-Porte at the Berlin Conference, as regards the Danube question which relates to her territory, and, having become completely independent in virtue of Article 43 of the Treaty of Berlin, she should have been invited to the London Treaty.

It is true that the Treaty of Berlin imposed on Roumania conditions affecting her sovereignty; but these conditions were laid down in Articles 43, 44 and 45 of the Treaty.

"Article 43: The High Contracting Parties recognize the independence of Roumania, subject to the conditions set forth in the following articles."

Article 44 proclaims the principle that difference of religious belief shall not constitute a disqualification from enjoying civil and political rights, and Article 45 obliges Roumania to cede to Russia the territory of Bessarabia.

It cannot be said that Roumania's sovereignty was further diminished by the expression "modifications" (of its powers), in Article 54 of the Treaty of Berlin, which expression leaves it to be supposed that the Powers had received a mandate to extend the territorial jurisdiction of the European Commission beyond the limits fixed at Galatz by the Treaty itself.

But even if it be supposed that the signatory States received such powers from Article 54 of the Treaty of Berlin, it will be easy to show that their power to extend the jurisdiction of the European Commission over the disputed sector Galatz-Braila could not be exercised without Roumania's consent.

Article 54 is as follows:

"One year before the expiration of the term assigned for the duration of the European Commission, the Powers shall come to an understanding as to the prolongation of its powers, or the modifications which they may consider necessary to introduce."

The words "prolongation of its powers" refer to a prolongation in time. The word "modifications" (of its powers) relates

to the whole of the duties which the European Commission had to fulfil. This word does not relate to a territorial extension of the Commission's jurisdiction. But even if it did, it would then have a double meaning and, in case of doubt, the interpretation must be in favour of sovereignty. Article 54 of the Treaty of Berlin therefore conferred a two-fold power on the Powers, that of prolonging the duration of the European Commission and that of modifying the whole of the Commission's duties. The word "modifications" (of its powers) therefore does not relate to the territorial extension of jurisdiction.

This is the interpretation to be given to Article 54 taken by itself. But in order to determine the true meaning and scope of Article 54 of the Treaty of Berlin, that article must be considered, not alone, but with the Treaty as a whole, having regard to the texts with which it is closely connected and which form with it an indivisible whole. Article 54 is closely connected with Articles 52, 53 and 55 of the Treaty of Berlin.

Article 53 declares that the European Commission shall be maintained henceforth as far as Galatz, and makes a place for Roumania on the Commission. This provision is of a definitive character, for it relates to Roumania's right to belong to the Commission, whose functions will be extended "as far as Galatz", and also to the principle laid down in favour of the European Commission that it shall act in complete independence of the territorial authority.

Article 52 moreover confirms this view. After laying down the principle of free navigation on the Danube, the High Contracting Parties declare that "no vessel of war shall navigate.... below the Iron Gates with the exception of vessels of light tonnage in the service of the river police" reserved for the riparian States; and the article adds: "The *stationnaires* of the Powers at the mouths of the Danube may, however, ascend the river as far as Galatz." It is therefore "as far as Galatz" that the *stationnaires* may ascend, in order to provide for the carrying out of the powers conferred on the European Commission.

The Powers signatory of the Treaty of London did not and could not modify the provisions of Article 52 of the Treaty of Berlin; the expression "as far as Galatz" must therefore be of a definitive character.

Article 55 of the Treaty of Berlin further confirms the definitive nature of the expression "as far as Galatz". The High Contracting Parties desired to specify the future method of procedure as regards the drawing up of regulations for navigation and police on the Danube. This article distinguishes between two sectors: Iron Gates to Galatz, and below Galatz. For the first sector it is provided that regulations shall be drawn up by the European Commission with the assistance of delegates of the riparian States; for the second sector it is the European Commission that is to issue the regulations.

If the Treaty of Berlin, which was inspired with the idea of respect for the sovereignty of the riparian State, declared in Article 55 that the assent of the territorial authority was necessary for the drafting of regulations, it is impossible to interpret Article 54 in the sense that the Treaty of Berlin authorizes the Powers to extend the territorial jurisdiction of the European Commission over the waters subject to Roumanian sovereignty without Roumania's consent.

Not only the fact that Roumania was a riparian State prevented the Powers, in view of Article 55 of the Berlin Treaty, from extending the European Commission's jurisdiction as far as Braila, but also the fact of membership of the European Commission granted to Roumania under Article 53 of the Treaty of Berlin, which prevented the Powers assembled at the London Conference from proceeding without Roumania to extend the powers of the European Commission in the disputed sector. In this sector Article 55 of the Treaty of Berlin entrusts the drawing up of regulations to the European Commission, with the assistance of the riparian Powers; the veto of Roumania in the European Commission must entirely deprive the proposal inspired by Austria-Hungary of the character of regulations.

It follows that the Powers assembled in London could not, in Article VII, adopt the Regulations for Navigation and River Police and Supervision prepared on June 2nd, 1882, by the European Commission and applicable to that part of the Danube between the Iron Gates and Braila. The Powers at the London Conference therefore acted *ultra vires* and could not in any way modify the provisions of Article 55 of the Treaty of Berlin, which had fixed Galatz as the point of separation between the two Commissions.

Even if it be assumed that, in interpreting Article 54 of the Treaty of Berlin, the Powers had the right to modify the territorial jurisdiction of the European Commission without Roumania, they themselves gave the authoritative interpretation of the meaning and scope of Article 54 of the Treaty of Berlin, in the Additional Act to the Public Act of Galatz, March 28th, 1881, signed by Roumania and by the Powers signatory of the Treaty of Berlin.

Article 1 excludes any interpretation to the effect that the Treaty of Berlin intended to reserve for the Great Powers, signatories of the Treaty, alone the right to modify the powers of the European Commission; for that article would not otherwise have expressly provided that "the rights, attributes and immunities of the European Commission of the Danube, such as they have been established by the Treaties of Paris of March 30th, 1856, and of London of March 13th, 1871, by the Public Act of November 2nd, 1865, as well as by the acts and decisions prior to the Treaty of Berlin of July 13th, 1878, shall continue to govern its relations with the new Riverain States, and their effect shall extend *as far as Galatz*".

Roumania, as a sovereign State signatory of this Act, has the right to rely on the above provisions as being the authoritative interpretation of the Treaty of Berlin, and thus fixing the territorial extent of the European Commission as being "as far as Galatz". As the result of this Act, no further modification of the powers of the European Commission is possible without Roumania's assent.

There would, moreover, be a flagrant violation of the principles of international law in the fact that Roumania who, under Article 53 of the Treaty of Berlin, had the same right of veto as other Powers on the European Commission, should have been excluded from the Conference of London, which made good the lack of unanimity on the European Commission as regards the drafting of the regulations for the Iron Gates-Braila sector, by the unanimity of the Powers assembled in London, and that an endeavour should be made to impose on Roumania the result of their decision.

If the Treaty of London has no legal value as regards Roumania, the three Powers are endeavouring to render it binding by maintaining that Roumania adhered to that Treaty.

They start from the idea that, if the Treaty of London cannot be adduced against Roumania, it has, ever since 1883, been non-existent as regards her, and that, since that date, Roumania has constantly taken her seat in the European Commission and has therefore implicitly recognized the existence of the Treaty.

The starting-point of this argument is a false one. Roumania has never maintained that the Treaty of London is inexistent. She has always maintained that the Treaty exists between the other Powers, but cannot be set up as against herself. The fact that Roumania has always been represented on the European Commission only proves that she agreed as regards the prolongation in time of the Commission's powers, but that she never accepted the prolongation of its powers as far as Braila; for the Powers had no right to take this step, which infringed the sovereignty of the State.

Moreover, Article I of the Treaty of London is closely connected with Article VII of that Treaty:

Article I: "The jurisdiction of the European Commission of the Danube is extended from Galatz to Braila."

Article VII: "The Regulations for Navigation, River Police and Superintendence, drawn up on June 2nd, 1882, by the European Commission of the Danube, assisted by the delegates of Servia and Bulgaria, are adopted in the form annexed to the present Treaty, and declared applicable to that part of the Danube which is situated between the Iron Gates and Braila."

It is beyond dispute that Roumania never adhered to Article VII. It must therefore be shown that Roumania adhered to Article I, without adhering to Article VII, with the consent of all the Powers.

It has been shown historically that Article VII was introduced in favour of Austria-Hungary, which, in exchange for the advantages conferred by that article, had consented to Article I which declared that the powers of the European Commission were extended. Roumania could not adhere to Article I without adhering to Article VII, for she would have

met with the opposition of Austria-Hungary. It being impossible to obtain the agreement of all the Powers as to the existence of Article I independently of Article VII, it cannot be concluded that Roumania adhered to that article.

The three Powers have further endeavoured to prove that Roumania adhered to the Treaty of London, not directly but indirectly, in signing the so-called Treaty of Bessarabia, by which that Roumanian province, detached from Roumania by Russia under the Treaty of Berlin, again returned to Roumania.

By Article III of the Treaty of London of 1883, the Kilia or northern branch of the Danube was removed from the jurisdiction of the European Commission and placed under that of Russia. By Article 7 of the Treaty of 1920 relating to Bessarabia, the Kilia branch was given back to the European Commission :

Article 7 : "The High Contracting Parties agree that the arm of the Danube called the Kilia arm shall pass under the jurisdiction of the European Commission of the Danube."

It has been argued that, by signing the so-called Treaty of Bessarabia, Roumania recognized the validity of the Treaty of London. This conclusion takes no account of the fact that Roumania, in signing the Treaty of 1920, became the successor of Russia on the Roumanian territory of Bessarabia ; and, since the Treaty of London of 1883 was binding as regards Russia, the Kilia arm came back to Roumania entirely free from the jurisdiction of the European Commission. Roumania, not being willing to benefit even indirectly by the provisions of the Treaty of London which she had always repudiated, signed Article 7 of the Treaty of 1920 in order to re-establish the jurisdiction of the European Commission over the mouths of the Danube in conformity with the Treaty of Berlin.

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It has been sought to explain that independently of Roumania the Treaty of London possesses legal force as being an application of the system adopted by the Concert of Europe which left to the Great Powers alone the task of deciding the principal affairs of Europe.

The Concert of Europe has always been regarded as a political system and has never been considered as a legal organization; in other words, the decisions of the Great Powers, met together as the Concert of Europe, have sometimes been able to command respect by reason of the power behind these decisions, but they have never been held to be legally binding upon States not represented in the Concert.

The Protocol of November 15th, 1818, of the Congress of Aix-la-Chapelle reserves to all States the right to take part in conferences which concern their special interests. That is an application of the principle of the Congress of Vienna, which has been reaffirmed successively by the Treaties of Paris and Berlin.

If the only object of the Conference of London had been to extend the powers of the European Commission in point of time, it might be argued that the Powers which were Parties to the Treaty of Berlin could alone take part in the Conference of London, because Article 54 of that Treaty only alludes to the signatory Powers.

But since the Conference of London considered it necessary territorially to extend the powers of the European Commission by making its authority reach as far as Braila, it was necessary that Roumania, who was entitled to sit upon this Commission under Article 53 of the Treaty of Berlin, should be summoned to take part in the London Conference with the right to vote.

That such were the principles of the public law of Europe at the time of the Treaty of London, is confirmed by the preliminary acts of the Conference and by the preparatory work.

The letter of December 11th, 1882, sent by Lord Granville, Secretary of State for Foreign Affairs, to H.B.M.'s Embassies runs as follows:

"London, December 11th, 1882.

Roumania not having been a Party to the Treaty of Berlin cannot, as of right, claim to have a seat in any conference convened for the consideration of one of the articles of that Treaty. But by the 53rd Article she became a member of the European Commission of the Danube, and it would therefore seem just that she should be placed in the most favourable position for stating her views at any conference which may meet, in compliance with the invitation which Her Majesty's Government have made to the Powers, for the consideration of certain questions connected with the navigation of the Danube. When, therefore, you communicate to the Government to which you are accredited my immediately preceding despatch, you will intimate confidentially that, whilst not in any way wishing to anticipate the decision of the Powers in Conference on any application from Roumania to be represented at such an Assembly, Her Majesty's Government would be glad to learn that the Government would be favourably inclined to Roumania being invited by the Powers when assembled in Conference to send a representative to attend its meetings on the same footing as those of the Powers signatories of the Treaty of Berlin.

I am, etc.

(Signed) GRANVILLE."

Earl Granville therefore believed that Roumania, who was a member of the European Commission, should be summoned to attend the Conference of London on a footing of equality with the Great Powers, and this opinion was shared by the other cabinets of Europe.

The letter of M. Duclerc, French Foreign Minister, to Viscount Lyons, British Ambassador in Paris, is as follows¹:

¹ [Translation.]

"In your confidential letter of the 13th of this month, Your Excellency was good enough to call my attention to the special position of Roumania, who, in virtue of Article 53 of the Treaty of Berlin, has been admitted to a seat on the European Commission of the Danube, and who, not being among the number of the signatory Powers of this Treaty, cannot "as of right" claim a seat at the conference the meeting of which the Government of the Queen now proposes.

Having regard to the nature of the questions which will be examined, the Government of Her Britannic Majesty consider that the representatives of the Powers, when assembled, might invite the Roumanian Government to send a delegate to the conference who would take part in the discussions

"Paris, le 18 décembre 1882.

"Par sa lettre confidentielle du 13 de ce mois, Votre Excellence a bien voulu appeler mon attention sur la situation particulière de la Roumanie, qui, en vertu de l'article 53 du Traité de Berlin, a été admise à se faire représenter à la Commission européenne du Danube et qui, cependant, n'étant point au nombre des Puissances signataires de ce Traité, n'est pas fondée "en droit" à réclamer un siège à la conférence dont le Gouvernement de la Reine propose en ce moment la réunion.

Eu égard à la nature même des questions qui seront examinées, le Gouvernement de Sa Majesté britannique estime que les représentants des Puissances, une fois réunis, pourraient inviter le Gouvernement roumain à envoyer à la conférence un délégué qui prendrait part aux délibérations, au même titre que ceux des Puissances signataires du Traité de Berlin.

Le Gouvernement de la République acquiesce volontiers à cette proposition, qui sera, le cas échéant, appuyée par son représentant à la conférence; je vous serais obligé de vouloir bien en aviser votre Gouvernement.

Agréez, etc.

(Signed) E. DUCLERC."

The letter from Sir A. Paget, British Ambassador at Rome, to Earl Granville, is as follows:

"December 15th, 1882.

"My Lord,

With reference to my immediately preceding despatch, I have the honour to inform your Lordship that as soon as I had read and given a copy to M. Mancini of your Lordship's despatch of the 11th instant with reference to a Conference upon questions connected with the navigation of the Danube, I read to His Excellency your Lordship's despatch of the 11th instant relative to the admission of Roumania to take part in such Conference.

When I had concluded, His Excellency observed that, although he quite admitted the soundness in principle of not deciding questions in which any Power was immediately concerned

on the same footing as those of the Powers signatory to the Treaty of Berlin.

The Government of the Republic willingly agrees to this proposal, which will, when raised, be supported by their representative at the Conference; I shall be obliged if you will be good enough to acquaint your Government of this.

Accept, etc.

(Signed) E. DUCLERC."

without giving that Power the opportunity of expressing its views upon the questions, it might, indeed, be objected that, as the Treaty of Berlin embraced many subjects which concerned the interests of several Powers, the admission of Roumania to the Conference now proposed, on the same footing as the Powers signatories of the Treaty, might create an inconvenient precedent for future deliberations. But M. Mancini admitted that the fact of Roumania being already a member of the European Commission placed her in an exceptional and special position in regard to a claim to be represented on the present occasion, and that therefore her admission to the Conference now proposed would not create the inconvenient precedent to which he had referred.

His Excellency then said he would communicate with the other Cabinets on the subject, and give me his reply as soon as possible. I understood that if the other Powers made no objection none would be raised by the Italian Government.

At M. Mancini's request I left with him a copy of your Lordship's despatch now referred to.

(Signed) A. PAGET."

At the Conference of London, at the meeting of February 10th, 1883 (Protocol No. 2), Earl Granville "exprime l'espoir que la Roumanie sera admise à la conférence sur le même pied que les autres Puissances. Il serait d'autant plus gracieux de lui faire cet accueil qu'elle se trouve déjà représentée dans la Commission européenne et qu'elle aura également son représentant dans la Commission mixte, dont la formation est proposée ¹".

Count Münster did not share the view expressed by Lord Granville. For, if, "tout en maintenant le principe de l'unanimité dans la conférence, on donnait une voix à la Roumanie, on lui créerait une position qui ne serait nullement désirable, celle de pouvoir à sa volonté imposer son *veto*. La Roumanie ne pourrait donc être admise qu'en qualité d'invitée et non comme maîtresse de maison ²."

¹ [Translation.]

"expressed the hope that Roumania would be admitted to the Conference on the same footing as the other Powers. To extend this invitation to her would be especially becoming since she was already represented on the European Commission and would also have a representative on the Mixed Commission which it was proposed to establish."

² [Translation.]

"whilst maintaining the principle of unanimity in the Conference, a vote were given to Roumania, that country would be placed in a position which

The Austro-Hungarian plenipotentiary took the same view as Count Münster.

The Conference, adopting the opinion of the majority, decided to invite Roumania to attend in an advisory capacity.

In Protocol No. 2 of the meeting of February 10th, 1883, it is stated that the Roumanian plenipotentiary having been admitted to the Conference "on being informed of this decision, stated that the instructions received by him from his Government only applied in the event of the Roumanian representative being admitted to the Conference with the right to vote. But that was not the position now offered him. He therefore requested the Conference to communicate its decision in writing. He would inform his Government of it and he had no doubt that he would shortly be able to convey its answer to the plenipotentiaries. Meanwhile he felt it his duty to abstain from the proceedings."

Roumania's right to take part in the Conference on a footing of equality with the Great Powers had been formulated in the letter of the Roumanian Minister in London, which forms Annex A to Protocol No. 2 of February 10th, 1883¹:

"Londres, le 1^{er} février 1883.

"My Lord,

Si la Roumanie, le pays le plus directement intéressé dans la navigation du Danube, n'a pas été appelée par le Traité de

was most undesirable, since she would be able at will to impose her *vet*o. Roumania therefore could only be admitted to the Conference as a guest and not as a host".

¹ [Translation.]

"London, February 1st, 1883.

"My Lord,

The reason why Roumania, the country most directly interested in the navigation of the Danube, was not called upon under the Treaty of Paris to take part in the work of the European Commission, is that, in 1856, she formed two distinct Principalities under the suzerainty of the Porte, which was responsible for the protection of the interests of the two countries. The situation was no longer the same in 1878. At the time of the Treaty of Berlin, Roumania was an independent State, her interests and rights could no longer as in the past be represented by the Ottoman delegate and the Congress of Berlin could do no less than invite her to appoint a representative on the European Commission of the Danube.

Under Article LIII of the Treaty of Berlin, the Roumanian delegate is admitted to the European Commission on the same footing as the delegates of the Powers which had signed the Treaties of Paris, London and Berlin. The recognition of the exceptional position occupied by Roumania on the part of the river placed under the jurisdiction of the European Commission

Paris à participer aux travaux de la Commission européenne, c'est qu'en 1856 elle formait deux Principautés distinctes sous la suzeraineté de la Porte, qui était tenue de défendre les intérêts des deux pays.

Il n'en était plus de même en 1878. A l'époque du Traité de Berlin, la Roumanie était un État indépendant, ses intérêts et ses droits ne pouvaient plus comme par le passé être représentés par le délégué ottoman, et le Congrès de Berlin ne pouvait faire moins que de l'appeler à se faire représenter dans la Commission européenne du Danube.

Par l'article LIII du Traité de Berlin, le délégué de la Roumanie est admis à la Commission européenne au même titre que les délégués des Puissances signataires des Traités de Paris, de Londres et de Berlin. C'était un acte de justice et d'équité que de reconnaître la position exceptionnelle occupée par la Roumanie sur la partie du fleuve soumise à la juri-

was an act of justice and equity. It was impossible to exclude her from exercising any influence over waterways of which she had just been given possession.

The participation of Roumania in the work of the Conference on a footing of absolute equality with the other Powers is indicated by the very nature of things. Having been admitted to the European Commission, she cannot be excluded from a Conference specially summoned to deal with the existence and organization of that institution.

It must be considered that Roumania's right to take part in the Conference is also justified by the ancient and established principles of International Law, as well as by the situation which has recently been recognized by Europe.

For, on the one hand, the Protocol of the Congress of Aix-la-Chapelle of November 15th, 1818, lays down that "in the case of these meetings having for their object affairs specially connected with the interests of the other States of Europe, they shall only take place under the express reservation of their right of direct participation therein".

And, on the other hand, Roumania, together with the other Powers, has signed the Additional Act to the Public Act of November 2nd, 1865, concerning the navigation of the mouths of the Danube, dated May 28th, 1881, and also the Regulations of Navigation and Police, applicable to the part of the Danube between Galatz and the mouths, drawn up by the European Commission on May 19th, 1881.

It was therefore to be inferred from the fact that the Roumanian plenipotentiary had signed these instruments that Roumania would also be called upon to state her views directly and on a footing of equality with the other Powers upon all questions relating to the European Commission of the Danube. Moreover, the Vienna Cabinet, in its Note of April 11th, 1882, showed itself favourable to the participation of Roumania and His Majesty's Government believes that the views of the other Cabinets of Europe will agree in recognizing the logical corollary of the situation in which Roumania has been placed by their own decision as set out in Article LIII of the Treaty of Berlin.

(Signed) JON GHICA,

Envoy Extraordinary and Minister Plenipotentiary
of His Majesty the King of Roumania.

To His Excellency Earl Granville,
President of the Conference."

diction de la Commission européenne. On ne pouvait pas l'exclure de toute action sur des eaux dont on venait de lui donner la possession.

La participation de la Roumanie aux travaux de la Conférence sur le pied de la plus parfaite égalité avec les autres Puissances est indiquée par la nature même des choses. Ayant été admise au sein de la Commission européenne, on ne peut l'exclure d'une conférence convoquée spécialement pour l'existence et l'organisation de cette même institution.

Il est à considérer que le droit de participation de la Roumanie à la Conférence est fondé aussi bien sur les prescriptions anciennes et permanentes du droit international que sur la situation récemment consacrée par l'Europe.

En effet, d'une part, le Protocole du Congrès d'Aix-la-Chapelle du 15 novembre 1818 statue que « dans le cas où des réunions auraient pour objet des affaires spécialement liées aux intérêts des autres États de l'Europe, elles n'auraient lieu que sous la réserve expresse de leur droit d'y participer ».

D'autre part, la Roumanie a signé avec les autres Puissances l'Acte additionnel à l'Acte public du 2 novembre 1865, relatif à la navigation des embouchures du Danube, en date du 28 mai 1881, ainsi que le Règlement de navigation et de police applicable à la partie du Danube comprise entre Galatz et les embouchures, arrêté par la Commission européenne le 19 mai 1881.

La signature du plénipotentiaire roumain impliquait dès lors que la Roumanie serait également appelée à se prononcer directement et de pair avec les autres Puissances sur toutes les questions relatives à la Commission européenne du Danube. Du reste, le cabinet de Vienne, par sa note du 11 avril 1882, s'est montré favorable à la participation de la Roumanie, et le Gouvernement du Roi pense que les vues des autres cabinets de l'Europe s'accorderont à reconnaître à la Roumanie le complément logique de la situation qui lui a été faite par leur propre décision consignée à l'article LIII du Traité de Berlin.

(Signé) JON GHICA,

Envoyé extraordinaire et ministre
plénipotentiaire de Sa Majesté le Roi
de Roumanie.

A Son Excellence le Comte Granville,
Président de la Conférence."

At the sitting of February 13th, 1883 (Protocol No. 3), the Italian plenipotentiary, Count Nigra, proposed that the Conference should communicate to the Roumanian Government the

decision taken which was based on "le fait que la Conférence a cru devoir se considérer en quelque sorte comme la prolongation et la suite du Traité de Berlin, auquel la Roumanie n'a pas participé comme signataire¹".

This proposal was unanimously adopted.

By a letter addressed to Lord Granville, on February 12th, 1883, the Roumanian Minister in London protested in the name of Roumania against the Conference's decision. This letter, which refers to that of February 2nd, forms Annex A to Protocol No. 3 of February 13th, 1883²:

"Londres, le 12 février 1883.

Monsieur le Comte,

Par ordre de mon Gouvernement, j'ai eu l'honneur d'adresser à Votre Excellence, en date du 2 février, une note pour demander que la Roumanie fût admise à prendre part à la Conférence relative à la question du Danube, sur le même pied que les autres États représentés dans la Commission européenne du Danube.

Votre Excellence ayant bien voulu me communiquer la décision qui a été prise à ce sujet par les représentants des Puissances signataires du Traité de Berlin, j'ai l'honneur de

¹ [Translation.]

"the fact that the Conference had felt that it should regard itself as in a sense a prolongation of and sequel to the Treaty of Berlin, in which Roumania had not taken part as a signatory".

² [Translation.]

"London, February 12th, 1883.

My Lord,

Under the instructions of my Government, I had the honour to transmit to Your Excellency a note dated February 2nd, requesting that Roumania should be allowed to take part in the Conference concerning the Danube question on the same footing as the other States represented on the European Commission of the Danube.

Your Excellency having been good enough to communicate to me the decision taken on this subject by the representatives of the signatory Powers of the Treaty of Berlin, I have the honour to inform you that His Majesty's Government cannot accept a position which would only enable it to attend the Conference in an advisory capacity and would not permit it to take part in the Conference's decisions.

I therefore find myself compelled to decline the honour of assisting at the meetings of the Conference and, on behalf of His Majesty's Government, I hereby make full reservations and solemnly protest against any decisions taken without the participation of Roumania and I declare that they will not be binding upon her.

I have, etc.

(Signed) JON GHICA.

His Excellency Earl Granville,
President of the Conference."

porter à la connaissance de Votre Excellence que le Gouvernement du Roi ne saurait accepter une situation qui ne lui accorderait qu'une voix consultative et qui ne lui permettrait pas de prendre part aux décisions de la Conférence.

Par conséquent, je me trouve, Monsieur le Comte, dans la nécessité de décliner l'honneur d'assister aux séances de la Conférence, et, au nom du Gouvernement du Roi, je fais les réserves les plus solennelles et je proteste contre les décisions qui seraient prises sans la participation de la Roumanie, en les déclarant non obligatoires pour elle.

Veillez, etc.

(Signé) JON GHICA.

Son Excellence le Comte Granville,
Président de la Conférence."

In a letter dated May 24th, 1883, sent by the Roumanian Foreign Minister to the Roumanian Minister in London for transmission to Lord Granville, after again protesting against the extension of the authority of the European Commission from Galatz to Braila, and against the Regulations of Navigation and Police from the Iron Gates to Braila, the Minister concludes as follows¹:

"En examinant avec impartialité et équité les dispositions du Traité de Londres du 10 mars 1883, on arrive nécessairement aux conclusions suivantes :

1) La Roumanie a des droits incontestables à la participation effective aux délibérations d'une conférence ayant pour objet les affaires du bas Danube en vertu de sa triple position de riveraine, de membre de la Commission européenne du Danube et de co-signataire de l'Acte additionnel du 28 mai 1881.

¹ [Translation.]

"An impartial and equitable examination of the terms of the Treaty of London of March 10th, 1883, necessarily leads to the following conclusions:

(1) Roumania has indisputable rights effectively to participate in the deliberations of a Conference dealing with the affairs of the Lower Danube, in virtue of her threefold position as a riparian State, a member of the European Commission of the Danube, and as a co-signatory of the Additional Act of May 28th, 1881.

(2) As Roumania was unable to take part in the proceedings of the Conference of London, the decisions taken at that Conference cannot be binding upon her.

(3) The Additional Act of May 27th, 1881, being a convention concluded and ratified in good and due form, cannot be modified unilaterally.

(4) The Regulations of Navigation and River Police applicable below the Iron Gates cannot be intended to prejudice the rights of riparian States—but to secure freedom of navigation and commerce through their agency."

2) N'ayant pu prendre part aux délibérations de la Conférence de Londres, les décisions prises par cette Conférence ne peuvent avoir force obligatoire pour la Roumanie.

3) L'Acte additionnel du 27 mai 1881, étant une convention régulièrement et valablement conclue et ratifiée, ne saurait être modifié unilatéralement.

4) Le Règlement de navigation et de police fluviale en aval des Portes-de-Fer ne saurait avoir pour but de porter atteinte aux droits des riverains, — mais d'assurer par eux la liberté de navigation et de commerce."

The whole of the foregoing shows that the reason for the exclusion of Roumania from the Congress was not the principle of the Concert of Europe ; the real reason must be sought, firstly in the desire of certain Powers to extend to Braila the authority of the European Commission, and secondly in Austria-Hungary's desire that the Conference should adopt the Regulations of Navigation and River Police from the Iron Gates to Braila.

These Regulations divide the Danube into two distinct parts and their object was to benefit Austria-Hungary to the detriment of the other riparian States ; riparian States below the Iron Gates have no share in the control of navigation above that point and reciprocity is abolished, so that Austria-Hungary acquires a preponderating position. Roumania, had she been present at the Conference, would, by her veto, have prevented certain Powers from attaining the result desired by them.

* * *

Since, in conformity with the terms of the Treaty of Berlin, the powers of the European Commission could in law only be exercised as far as Galatz, it remains to consider whether in fact the European Commission could not extend its powers on the grounds of international custom.

It should be observed that in the present case there is no question of an encroachment upon the sovereignty of one State enuring to the benefit of another, but of such an encroachment enuring to the benefit of the European Commission of the Danubé. If in the former case immemorial usage may lead to an encroachment upon sovereignty, in the latter, usage cannot be taken into consideration. Indeed the Inter-

national Commission of the Danube is an organization which was put into operation by the common wish of the Powers as expressed by the treaties and conventions in force.

The European Commission of the Danube was created in order to ensure navigation on the river. It possesses its own patrimony which is distinct from the separate patrimony of each State. It has its own flag. It is in reality an international organization which possesses its own sovereign powers on the territory of the Roumanian State; it has legislative powers for drawing up regulations and executive powers for carrying them out; it even has judicial powers because it gives sentences in its own name. But all these rights which are conferred upon it and which it may exercise in conformity with Article 53 of the Treaty of Berlin "in complete independence of the territorial authorities", it only possesses and it can only exercise within the limits defined by the international treaties by which it was created. It cannot of its own will either extend or diminish its own powers.

Even if the European Commission has in the past exercised the rights and prerogatives arising from situations of fact independently of the situation at law, it is easy to show that the formation of a customary rule compelling Roumania to submit in the disputed sector to a limitation of its right of sovereignty could not have been established.

The teachings of publicists and of international practice agree in recognizing the necessity of immemorial usage consisting both of an uninterrupted recurrence of accomplished facts in the sphere of international relations and of ideas of justice common to the participating States and based upon the mutual conviction that the recurrence of these facts is the result of a compulsory rule.

No international custom showing that Roumania had abandoned her right of jurisdiction over the Galatz-Braila sector in favour of the European Commission of the Danube has been able to develop; since neither a recurrence of facts from immemorial times nor ideas of justice held in common can be shown to exist.

In order that these common ideas of justice should be capable of being invoked, on the one hand the European Commission must have believed it was acting under a

compulsory rule and, on the other, Roumania, either by external action or by constant abstentions, must have recognized that the exercise of the right was lawful.

From a consideration of the facts which took place before the war, it is easy to show that, although sentences were pronounced by the Inspector of Navigation in the disputed sector, it cannot be said that the European Commission was convinced of the lawful character of the exercise of the right, because it was contrary to the navigation regulation issued by the Commission itself. Since the decisions of the European Commission of the Danube had to be taken unanimously, a conviction as to the lawful character of its right of jurisdiction cannot be spoken of, in view of the dissenting vote of the Roumanian delegate, who raised a protest every time he was informed of the abusive exercise of the right.

Furthermore, the sentences of the Roumanian authorities in the disputed sector prove that Roumania has never recognized the right of the European Commission as being lawful. Even though Roumania has abstained from the exercise of her jurisdiction during a certain period, it cannot be said that she has renounced her right in favour of the European Commission ; because, as the Court laid down in the case of the *Lotus* (p. 28), "for only if such abstention were based on their being conscious of having a duty to abstain would it be possible to speak of an international custom". Moreover, it is not enough to abstain ; it is for the other side to prove that he had exercised the right with a conviction of its having been lawful.

* * *

It is clear that in the sector from Galatz to the mouths, in which the European Commission exercises "powers", by virtue of Article 53 of the Treaty of Berlin, "in complete independence of the territorial authorities", it has the right of issuing regulations, the right of policing the river, and the right of exercising jurisdictional powers, because clear and unambiguous provisions have conferred this right upon it.

This is not the case as regards the disputed Galatz-Braila sector, because as regards this sector there is no treaty which is valid as against Roumania and which confers such right

upon the Commission. As regards the sector in dispute, the European Commission, in order to meet the requirements of maritime navigation, exercises in common certain rights of superintendence; but there are no stipulations in the Regulations of the European Commission in favour of this Commission exercising rights of jurisdiction.

The Committee of Enquiry nevertheless considered that: "In the absence of any clearly proved practice to the contrary, the exercise of the power of regulation and of that of punitive jurisdiction (that is to say of jurisdictional powers) merge."

And the Committee, in the absence of any texts in support, invoked the "practice established on the maritime Danube". This practice is contradicted by the treaties and international acts relating to the Danube and its mouths.

Thus, according to the terms of Article 55 of the Treaty of Berlin, the European Commission is entrusted with drawing up regulations respecting navigation from the Iron Gates to Galatz, and it has never been claimed that the European Commission has a right of exercising jurisdictional powers as far as the Iron Gates.

Articles 12 and 14 of the Barcelona Convention of April 20th, 1921, further confirm this point of view.

Article 14 stipulates that if any special agreements or treaties conferred certain functions relating to navigation to an international commission, the powers and duties of the commission shall at least include *the rights of drawing up navigation regulations*. The text does not say: "and jurisdictional powers". This right must be exercised, subject to treaty provisions to the contrary, by the territorial authorities.

Still less can it be said that technical powers involve jurisdictional powers, because such a contention would not correspond either to the principles enunciated in the treaties and conventions relating to the Danube or to the Barcelona Convention or in the last place to the principles relating to sovereignty.

The Treaty of Paris of March 30th, 1856, confers upon the European Commission a purely technical character, because it was entrusted with carrying out at the mouths of the Danube works necessary for the navigation, and the right of jurisdiction was exercised by the territorial authority, as laid down in Article 8 of the Public Act of Galatz of November 2nd, 1865.

From the Treaty of Barcelona of April 20th, 1921, no connection of any kind can be inferred between the exercise of technical powers and the exercise of jurisdictional powers, the latter belonging to the State whose sovereignty extends over the navigable waterway.

Article 6.—Each of the contracting States maintains its existing right, on the navigable waterways or parts of navigable waterways referred to in Article 1 and situated under its sovereignty or authority, to enact the stipulations and to take the measures necessary for policing the territory and for applying the laws and regulations relating to customs, public health, precautions against the diseases of animals and plants, emigration or immigration, and to the import or export of prohibited goods, it being understood that such stipulations and measures must be reasonable, must be applied on a footing of absolute equality between the nationals, property and flags of any one of the contracting States, including the State which is their author, and must not without good reason impede the freedom of navigation.

Article 10.—

2. If such navigation necessitates regular upkeep of the waterway, each of the riparian States is bound as towards the others to take such steps and to execute such works on its territory as are necessary for the purpose as quickly as possible, taking account at all times of the conditions of navigation, as well as of the economic state of the regions served by the navigable waterway.

4. In the absence of any agreement to the contrary, a State which is obliged to carry out works of upkeep, is entitled to free itself from the obligation, if, with the consent of all the co-riparian States, one or more of them agree to carry out the works instead of it; as regards works for improvement, a State which is obliged to carry them out shall be free from the obligation if it authorizes the State which made the request to carry them out instead of it. The carrying out of works by States other than the State territorially interested, or the sharing by such States in the cost of works, shall be so arranged

as not to prejudice the rights of the State territorially interested as regards the supervision and administrative control over the works, or its sovereignty or authority over the navigable waterway.

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Furthermore, the principles relating to sovereignty do not allow of the conclusion that the exercise of technical powers carry with them the exercise of jurisdictional powers, because the latter, being the most fundamental attribute of sovereignty can only be surrendered by the clearly expressed intention of the State on the territory of which the exercise of such jurisdiction is claimed.

On what grounds do the three Powers claim the right of exercising jurisdictional powers over the Galatz-Braila sector, when the Treaty of Berlin and the police and navigation regulations which apply to the Lower Danube only confer this right upon the Powers below Galatz?

It is true that on this part of the river which extends from Galatz to Braila and which forms part of the maritime Danube, the commercial interests of the nations require that the regulations should be the same as those below Galatz and that a joint control both over the course of the river and over the entry and exit of ships from the ports should be accepted; but it cannot be inferred from the acceptance by Roumania of such joint control over the Galatz-Braila sector and from the carrying out of certain works of a technical character, that Roumania has surrendered her rights of sovereignty over the sector in dispute. Such a surrender cannot be presumed. There must be a clear and unambiguous authority. No such authority exists. Even were one to refer to the *de facto* situation before the war, the terms of the Navigation Regulations, the Instructions issued by the Inspector, and the Guide to Navigators, would prove that the jurisdiction of the European Commission extends from the mouths of the river to below Galatz.

The title of the Regulations is as follows: "Regulations of Navigation and Police applicable to the part of the Danube between Galatz and the mouths." Articles 1, 3, 165 and 190, which relate to the right of jurisdiction, correspond to the title of the Regulations:

Article premier.—L'exercice de la navigation sur le bas Danube *en aval de Galatz* est placé sous l'autorité de l'inspecteur de la navigation et du capitaine du port de Soulina¹.

Article 3.—L'inspecteur est spécialement préposé à la police du bas Danube *en aval de Galatz*, à l'exclusion du port de Soulina².

Article 165.—L'amende est de vingt francs au moins et de 550 francs au plus, pour tout capitaine d'un bâtiment de mer qui, en cours de voyage, *entre Galatz et Soulina*, ne peut présenter son rôle d'équipage, ou refuse de le produire aux agents de l'Inspection de la navigation³.

Article 190.—L'inspecteur de la navigation et le capitaine du port de Soulina connaissent des contraventions commises, *dans l'étendue de leur ressort*, contre les dispositions du présent Règlement et prononcent, en première instance, l'application des amendes encourues à raison de ces contraventions⁴.

In the interests of maritime navigation, which extends from the mouths of the river to Braila, provision has been made for certain general rules of superintendence which compel the European Commission to take certain precautionary measures. Thus, under Article 35 of the Regulations, steamers must maintain full pressure throughout their movements in ports on the Lower Danube and must "slow down when passing through the sections of the ports of Braila, Galatz,

¹ [Translation.] "The navigation of the Lower Danube *below Galatz* is placed under the control of the Inspector of Navigation of the Lower Danube and of the Captain of the Port of Sulina."

² [Translation.] "The Inspector is specially charged with the police of the Lower Danube *below Galatz*, exclusive of the port of Sulina."

³ [Translation.] "A fine of 20 frs. at least or 550 frs. at most, may be inflicted on the captain of any sea-going vessel found *between Galatz and Sulina* who cannot produce his muster-roll, or refuses to produce it for the agents of the Inspector of Navigation."

⁴ [Translation.] "The Inspector of Navigation and the Captain of the Port of Sulina take cognizance of offences committed *within the limits of their several jurisdictions* against the provisions of the present Regulations, and they give judgment, each as a Court of first instance, in respect of the fines applicable to these offences."

Reni, Toultscha and Sulina". Again, the European Commission must maintain a service of licensed pilots, and sea-going vessels must, under Article 101 of the Regulations, be navigated by a pilot of the European Commission, as far as Braila.

It is impossible, from the fact that sea-going vessels must slow down in ports (Article 35) and must be navigated as far as Braila by a pilot of the European Commission who must report breaches of the Regulations (Articles 101, 102 and 108), to conclude that the jurisdiction of the European Commission is implicitly extended as far as Braila.

That conclusion is in contradiction with Articles 3, 165 and 190 of the Regulations, which state that the jurisdictional power of the European Commission extends downstream from Galatz to the mouths of the Danube. Moreover, this extension of jurisdiction is contrary to the intention expressed by the Powers in the international treaties and instruments relating to the Danube. All the provisions, which contain measures of superintendence (pilotage, slowing down in ports, etc.), and which are cited as implying an extension of jurisdiction to Braila, were embodied in the old regulations contained in the Public Act of Galatz of 1865, and subsequently confirmed by the Additional Act of Galatz of 1881. If the Powers possessed jurisdictional powers under these provisions, why then did the Treaties of Berlin and of London extend the territorial authority of the European Commission? Because the Powers have always held that regulations cannot be construed in a sense contrary to the Treaty of which they form an integral part, and that restrictions cannot be imposed upon the sovereignty of a State otherwise than by means of the assent of that State expressed in a treaty submitted to it for ratification.

Sentences given by the Roumanian Authorities.

The 433 cases presented by the Roumanian Government are disregarded by the Committee, for the reason that they are cases of civil awards or relate to the policing of ports in which Roumania's authority is undisputed. In other words, these sentences should have been taken into consideration if they had concerned matters of river police either in the

navigable channel passing through the ports of Galatz and Braila, or in the sector in dispute outside these ports, since in these two cases Roumania's right of jurisdiction is disputed. But to make such a contention tenable, the territorial limits of the ports of Galatz and Braila, both below and above these ports, and in relation to the navigable channel, must first of all be established, for otherwise the conclusion eliminating the whole of the cases presented cannot be entertained.

An examination of the sentences discarded shows that some of them relate to river police matters. The Committee records that the Roumanian Authorities condemned the *Néré* and the *Main* for navigating without a pilot between Galatz and Braila.

The Committee takes no account of these two cases, for in these particular instances Article 10 of the Roumanian Regulations was applied, whereas it should have been the Regulations of the European Commission. But even if it were so, the Committee should have taken them into account; for the question put to it was what authority had in fact exercised the right of jurisdiction.

The Roumanian Authorities further condemned for infringements of their Police Regulations the yacht *Carolus* and the tug *Ister*, belonging to the European Commission, by sentences No. 2537 (November 26th, 1907) and No. 279 (March 6th, 1901).

The Committee excludes the first case. As regards the second, it was a condemnation for excessive speed on leaving the port of Galatz.

If the Roumanian Authorities had no rights of jurisdiction in the Galatz-Braila sector, how can the fact be explained that the European Commission never made a protest to the Roumanian Government?

Sentences given by the European Commission.

Generally speaking, the sentences of the European Commission relating to the sector Galatz-Braila were rendered without the knowledge of the Roumanian Authorities or of the Roumanian delegates, and when the latter became aware of them they protested to the Commission, which admitted the justice of the protest and gave orders to its agents no longer to exercise jurisdictional powers on the sector in dispute.

Roumanian protests and decisions of the European Commission of the Danube.

As a result of the repeated protests of the Roumanian delegate against the abusive acts of the Inspector of Navigation, the rights of the territorial authorities in the sector were formally recognized by the European Commission's decision of March 19th, 1892.

The note sent by the Commission to all delegates and reproducing the decision taken to this effect is as follows:

"Commission européenne du Danube.

N° 432.

Galatz, le 20 mars 1892.

Monsieur et cher Collègue,

Le Comité exécutif a l'honneur de vous informer que, dans sa séance du 19 mars courant, à la suite d'observations à lui soumises verbalement par M. le délégué de Roumanie concernant deux dépositions recueillies par l'inspecteur de la navigation sur les circonstances d'un échouement qui a eu lieu en *amont de Galatz*, la résolution suivante a été prise à l'unanimité des six délégués présents:

"La Commission européenne, désireuse de continuer les bons rapports qui existent si heureusement entre elle et le Gouvernement royal de Roumanie, s'engage à éviter tout conflit, en donnant les ordres nécessaires à l'inspecteur de la navigation du bas Danube et à ses autres agents, de ne pas dresser d'actes de juridiction dans les localités situées en amont de Galatz.

Galatz, le 19 mars 1892."

(Signé) RAFFAUF, PERCY SANDERSON, GIULIO TESI, A. ROMANENKO, I. D. BALACEANO, M. AZARIAN¹."

¹ [Translation.]

"European Commission of the Danube.

No. 432.

Galatz, March 20th, 1892.

Monsieur et cher Collègue,

The Executive Committee has the honour to inform you that at its meeting of March 19th, in consequence of observations addressed to it verbally by the Roumanian delegate concerning two depositions taken by the Inspector of Navigation in regard to the circumstances of a vessel running ashore above Galatz, the following resolution was unanimously adopted by the six delegates present:

"The European Commission, being anxious to preserve the good relations so happily prevailing between it and the Royal Roumanian Government, undertakes to avoid any dispute, by giving the necessary orders to the Inspector of Navigation on the Lower Danube and to its other agents not to exercise jurisdictional powers in localities above Galatz.

Galatz, March 19th, 1892."

(Signed) RAFFAUF, PERCY SANDERSON, GIULIO TESI, A. ROMANENKO, I. D. BALACEANO, M. AZARIAN."

Custom.

It has been demonstrated above that an isolated fact or case of tolerance cannot be transformed into a situation valid at law; there must be an international custom which can only be established by a continuous practice from time immemorial and by a reciprocal conviction of the lawfulness of the exercise of the right in question. Now, these conditions are not present in this case: the British Memorandum speaks of an "intermittent control" exercised by the European Commission on the sector Galatz-Braila. The Annual Report of the Secretary-General of the European Commission only mentions the exercise of jurisdiction on the sector in dispute since 1904. Finally, the Committee recognizes that: "What happened between 1906 and 1911 is not very clear from the documents submitted to the Committee...."

Again, the protests of Roumania and the decisions of the European Commission recognizing the soundness of Roumania's claim, exclude the possibility of any common conception of the law. Furthermore, the sentences of the European Commission are rendered in virtue of the Treaties of Paris of 1856, of London of 1871 and of Berlin of 1878, the latter of which extended its authority as far as Galatz, a circumstance which renders it impossible for the Commission to have the conviction that the exercise of its right on the sector in dispute is lawful.

The following is the formula to be found in all these sentences¹:

« Nous, Inspecteur de la Navigation du bas Danube,

Vu les articles 32 et 105 du Règlement de navigation et de police, édicté sous la date du 10 novembre 1911 par la Commission européenne du Danube instituée en vertu du Traité de Paris du 30 mars 1856, du Traité de Londres du 13 mars 1871 et du Traité de Berlin du 13 juillet 1878. »

It is therefore clear that in this case no international custom exists, since there is neither a continued exercise

¹ [Translation.] "We, Inspector of Navigation of the Lower Danube, Having regard to Articles 32 and 105 of the Regulations of Navigation and Police promulgated on November 10th, 1911, by the European Commission of the Danube established in pursuance of the terms of the Treaty of Paris of March 30th, 1856, of the Treaty of London of March 13th, 1871, and of the Treaty of Berlin of July 13th, 1878."

of a right since time immemorial nor a mutual conviction of the lawfulness of the exercise of such a right.

The Protocol of May 6th, 1921.

It will be shown later that the Protocol of May 6th, 1921, must be regarded as a decision of the European Commission, stating the conditions under which its powers have been exercised in the sector in dispute. Now the Protocol specifies that, in the past, it maintained the navigable channel and the pilotage service, Jurisdictional powers, not being mentioned, must be regarded as having belonged as of right to Roumania.

The Agreement of 1922.

It will be shown later that the European Commission has implicitly recognized that Roumania has in the past exercised rights of jurisdiction over the Galatz-Braila sector.

* * *

Since the *de facto* situation has not in the past received the sanction of international custom, it must be ascertained whether the Statute of the Danube has not taken into account the pre-war situation of fact.

Article 5. — “La Commission européenne exerce les pouvoirs qu’elle avait avant la guerre.

Il n’est rien changé aux droits, attributions et immunités qu’elle tient des traités, conventions, actes et arrangements internationaux relatifs au Danube et à ses embouchures.”

Article 6. — “La compétence de la Commission européenne s’étend, dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles, sur le Danube maritime, c’est-à-dire depuis les embouchures du fleuve jusqu’au point où commence la compétence de la Commission internationale ¹.”

¹ [Translation.] *Article 5.*—“The European Commission retains the powers which it possessed before the war.

No alteration is made in the rights, prerogatives and privileges which it possesses in virtue of the treaties, conventions, international acts and agreements relative to the Danube and its mouths.”

Article 6.—“The authority of the European Commission extends, under the same conditions as before, and without any modification of

Article 5 deals solely with a situation at law. The word "powers" does not refer to a situation of fact but rather to the rights conferred on the European Commission. This is made clear by comparing the Treaty of Berlin, which, in Article 54, refers to the *powers* of the Commission, with the Additional Act of Galatz which, in Article 1, states that the *rights* derived from the Treaty of Berlin are to continue to hold good in the future.

That the word "powers" in Article 5 does not refer to situations of fact but only to situations at law is also borne out by the second paragraph of the article: "... No alteration is made in the rights, prerogatives and privileges which it possesses in virtue of the treaties, conventions, international acts and agreements relative to the Danube and its mouths."

Whilst Article 5 does not relate to situations of fact, this is not true of Article 6, which must be construed in the light of the Protocol and which has transformed certain situations of fact into situations at law in the sector in dispute. For it does not simply say without qualification that the Commission's authority is to extend *over the maritime Danube*, but that it is to do so *under the same conditions as before and without any modification of its existing limits*.

The Roumanian representative at the Conference of the Danube recognized that in fact Roumania never opposed the exercise of the Commission's technical powers in the disputed sector, but that she never admitted its right to exercise jurisdictional powers. All this appears from the preparatory work.

The first Draft of Article 6 was as follows:

Article 6.—"La juridiction de ladite Commission s'étend, comme il est dit à l'article 4, sur toute la partie du fleuve accessible aux navires de haute mer, c'est-à-dire de Braïla à la mer Noire¹."

The Roumanian plenipotentiary refused to accept it. Agreement was reached in regard to Galatz and on the basis of a

its existing limits, over the maritime Danube, that is to say, from the mouths of the river to the point where the authority of the International Commission commences."

¹ [Translation.] *Article 6*: "The jurisdiction of the said Commission shall, as laid down in Article 4, extend over all the part of the river accessible to sea-going ships—that is to say from Braïla to the Black Sea."

distinction between technical and jurisdictional powers. M. Legrand proposed a second draft:

"La juridiction de ladite Commission s'étend, comme il est dit à l'article 3, sur le Danube maritime, c'est-à-dire de la mer Noire jusqu'à Galatz, à l'exclusion des ports fluviaux autres que le port de Soulina.

Toutefois, la compétence technique de la Commission s'étendra comme par le passé sur le chenal navigable entre Galatz et Braïla. Le service du pilotage reste compris dans cette compétence ¹."

The German plenipotentiary objected: "... that the general authority of the European Commission had been extended by the Treaty of London of March 10th, 1883, as far as Braïla. If it were now proposed only to grant it technical powers on the part of the river between Galatz and Braïla, that would amount to modifying the powers exercised by the Commission before the war, which powers had been expressly maintained by Article 346 of the Treaty of Versailles."

"The Roumanian delegate replied that the Treaty of London of March 10th, 1883, had never been accepted by Roumania. The European Commission had only carried out technical works between Galatz and Braïla for the upkeep and improvement of the navigable channel. Pilotage and buoying were also within the Commission's province on that part of the river.

The President's draft which took into account this situation of fact and of law was the only one which could satisfy the Roumanian delegation."

The remarks of the British plenipotentiary were also as follows:

"The British delegate observed that Article VI simply confirmed the powers in fact exercised by the European Commission which, between Galatz and Braïla, undertook dredging, buoying and pilotage.

Subject to these observations, Article VI was adopted in first reading."

¹ [*Translation.*] "The jurisdiction of the said Commission shall, as laid down in Article 3, extend over the maritime Danube—that is to say from the Black Sea to Galatz—with the exception of river ports other than that of Sulina.

Nevertheless, the technical authority of the Commission shall, as in the past, extend over the navigable channel between Galatz and Braïla. The authority in question shall cover the pilotage service."

In order to take into account the observations of the German delegate and the replies made to him by the other delegates, M. Legrand submitted a new text which, as he explained, "made no fundamental change in Article 6 but simply a modification of form designed to make the wording of the article more clear and to remove an apparent anomaly in its original text". (Protocol No. 34, Vol. II, p. 595.)

The Roumanian plenipotentiary said that he was prepared to accept the formula proposed with one modification: the substitution of the word *compétence* (authority) for the word *jurisdiction* (jurisdiction), "with an express reservation in respect of *de facto* restrictions existing before the war between Braila and Galatz". (Protocol No. 34, p. 540.) It was unanimously recognized that in the Braila-Galatz sector only the technical powers of the European Commission, and not its jurisdictional powers, might be exercised. Nevertheless the Roumanian plenipotentiary proposed, in order to prevent any doubt as to the construction to be placed on Article 6, to define its meaning in a protocol; "if this were done, he said, no one could in the future be under a misapprehension as to the real scope of its authority which, though terminating at the point where that of the International Commission began, was not exercised under the same conditions between the Black Sea and Galatz as between Galatz and Braila." And he asked "that the European Commission of the Danube, which was directly interested in this question, might be requested by the President of the Conference to define in a special protocol, which would form an integral part of the Statute of the Danube, the exact extent of its powers as exercised before the war".

The Hungarian plenipotentiary having asked "what authority was responsible for the drawing up and application of navigation regulations between Galatz and Braila—the European Commission or the territorial authority?", his question was answered by the following decision: "it is decided that the Protocol to be drawn up by the European Commission, under the conditions proposed by the Roumanian plenipotentiary, shall contain all these particulars. This Protocol, which is

to be drawn up as the result of an agreement between the delegates of the four Powers at present represented on the European Commission, shall serve as an interpretation of Article 6."

On May 6th, 1921, the Interpretative Protocol was drawn up by the European Commission of the Danube. It bears the signatures of the British, French, Italian and Roumanian representatives, and runs as follows¹:

"Annexe II au Protocole n° 68.

Protocole interprétatif de l'article VI du Statut du Danube,
arrêté par la Commission européenne du Danube.

A la suite de l'adoption par la Conférence internationale du Danube de l'article VI du projet de statut définitif qui détermine la compétence de la Commission européenne, les délégués de France, de Grande-Bretagne, d'Italie et de Roumanie ont

¹ [*Translation.*] "Annex II to Protocol No. 68.

Interpretative Protocol to Article VI of the Statute of the Danube,
prepared by the European Commission of the Danube.

As a result of the adoption by the International Danube Conference of Article VI of the Draft Definitive Statute determining the competence of the European Commission, the delegates of France, Great Britain, Italy and Roumania have agreed, at the request of the Conference, to draft the following Protocol with a view to laying down their interpretation of the above-mentioned provision.

The undersigned delegates declare that, in stipulating that the authority of the European Commission extends to the maritime section of the Danube—i.e. from the mouths of the river to the point where the authority of the International Commission begins—Article VI of the Statute does not, and shall not hereafter, entail any modification of the conditions under which, or the limits within which, this administrative régime has hitherto been applied. It is clearly understood, therefore, that the powers of the Commission are not, in virtue of this provision, either increased or diminished, and that they should continue to be exercised on the river in the same way as in the past in conformity with the treaties, international acts and rules of navigation to which all the States represented have adhered. It is also understood that between Galatz and Braila the European Commission will continue as in the past to maintain the navigable channel and its pilotage service.

The present declaration shall be communicated to the International Conference and placed in the official archives of the European Commission of the Danube.

Done at Paris, May 6th, 1921.

(Signed) A. LEGRAND,
Delegate of France.

(Signed) SICILIANI,
Delegate of Italy.

(Signed) BALDWIN,
Delegate of Great Britain.

(Signed) CONTZESCO,
Delegate of Roumania."

convenu, sur la demande de la Conférence, de rédiger le protocole suivant en vue de fixer l'interprétation qu'ils ont entendu donner à la disposition susvisée :

Les délégués soussignés déclarent qu'en stipulant que « la compétence de la Commission européenne s'étend sur le Danube maritime, c'est-à-dire depuis les embouchures du fleuve jusqu'au point où commence la compétence de la Commission internationale », l'article VI du Statut n'apporte et ne doit apporter à l'avenir aucune modification aux conditions ni aux limites dans lesquelles ce régime administratif a été appliqué jusqu'aujourd'hui. Il est donc clairement entendu que les pouvoirs de la Commission ne sont, en vertu de cette disposition, ni augmentés ni diminués et qu'ils doivent continuer à s'exercer sur le fleuve, de la même manière que par le passé, en conformité avec les traités, actes internationaux et règlements de navigation auxquels tous les États représentés ont adhéré. Il est également entendu qu'entre Galatz et Braïla la Commission européenne continuera, comme par le passé, à entretenir le chenal navigable et son service de pilotage.

La présente déclaration sera communiquée à la Conférence internationale à toutes fins utiles et versée aux archives officielles de la Commission européenne du Danube.

Fait à Paris, le 6 mai 1921.

Le délégué de France :
(Signé) A. LEGRAND.

Le délégué de Grande-Bretagne :
(Signé) J. G. BALDWIN.

Le délégué d'Italie :
(Signé) V. SICILIANI.

Le délégué de Roumanie :
(Signé) C. CONTZESCO."

At the time this Protocol was submitted to the Conference, the President, after reading out its terms, stated that it would be published as an annex to the Protocol of the meeting:

"Le Président rappelle à la Conférence que, lorsqu'elle s'est occupée d'établir la compétence de la Commission européenne, il avait été entendu, sur la proposition du plénipotentiaire de Roumanie, que la Commission européenne fixerait elle-même l'interprétation de l'article VI du Statut dans un protocole spécial qui serait communiqué à la Conférence.

Ce protocole, signé des quatre délégués à la Commission européenne, est parvenu au secrétariat général de la Confé-

rence: le Président en donne lecture et déclare qu'il sera versé aux archives de la Conférence et publié en annexe au protocole de la présente séance¹."

All the members of the Conference were in agreement as regards the President's statement.

The obligatory character of the Protocol has rightly been disputed, since, being in itself an international agreement, it must be annexed to the Treaty and ratified under the same conditions. It is only then that its provisions acquire the same obligatory force as the treaty to which it refers. But although a protocol, which has not been annexed to a treaty and has not been ratified, may not have the obligatory force of a treaty, it must at least have an interpretative value. If the Protocol does not possess obligatory force as an act of the Danube Conference, this force must be attributed to it on another ground: it is a decision of the European Commission which is not submitted to ratification by the Powers and which establishes the conditions under which the Commission's powers were in fact exercised in the past.

The European Commission had been invited to the Paris Conference by the Conference of Ambassadors as an organized international institution, an independent body, to give to the Conference entrusted with the task of drawing up the Definitive Statute any useful information for that purpose.

It cannot be said that the European Commission exceeded its powers by giving a decision on matters which were submitted to it by the Danube Conference, because the European Commission confined itself to taking note of the *de facto* conditions under which its powers had been exercised in the past, and to the limits imposed upon its powers.

Assuming that the Protocol had no obligatory force either as an act of the Conference relating to the Statute of the

¹ [Translation.] "The President draws the attention of the Conference to the fact that at the time when it was considering the definition of the competence of the European Commission, it was understood that, upon the proposal of the Roumanian plenipotentiary, the European Commission would itself interpret Article VI of the Statute in a special Protocol, which would be communicated to the Conference.

This Protocol, signed by the four delegates to the European Commission, was received by the Secretariat-General of the Conference; the President, after reading its terms, states that it would be placed in the archives of the Conference and published as an annex to the protocol of this meeting."

Danube or as a decision of the European Commission, its interpretative value, as an act of the Conference, might at least be of service in arriving at the meaning and scope of Article 6.

The Protocol lays down :

(1) that Article 6 does not introduce "any modification in the conditions under which or as to the limits within which this administrative régime has hitherto been applied" ;

(2) that the powers of the Commission have not been either increased or diminished by virtue of Article 6 and that they should continue "to be exercised on the river in the same way as heretofore in conformity with the treaties" ;

(3) that the treaties in question are those "to which all the States represented have adhered" ; this excludes the Treaty of London ;

(4) that as regards the Galatz-Braila sector, the European Commission "will continue as in the past to maintain the navigable channel and its pilotage service".

The Protocol lays down that as regards the sector in dispute, the European Commission of the Danube has not exercised its rights in the past by virtue of the Treaty of London, which extended its jurisdiction up to Braila, but that it has in fact exercised certain technical powers which were not disputed by the Roumanian Authorities. Consequently, it follows from this Protocol that jurisdictional powers were not exercised on the Braila-Galatz sector.

Article 6 of the Statute of the Danube, being intended to transform the *de facto* situation before the war into one *de jure*, was able by the words *under the same conditions as before* to confer to certain powers a legal basis (technical powers, the maintenance of the navigable channel and pilotage) ; and, by the words *without any modification of its existing limits*, to extend up to Braila the territorial jurisdiction of the European Commission which henceforward would have the right of exercising its technical powers as far as that limit.

If one is of the opinion that the Statute of the Danube has effected a transformation of this nature, it can only refer to activities the exercise of which is undisputed (the pilotage service, the maintenance of the navigable channel). This transformation cannot apply to activities against which the Roumanian Government has repeatedly protested, nor to

activities which had been merely tolerated, because the private law principle that such activities cannot be the basis of either possessive or prescriptive rights must be applied to the present case. If it were otherwise, there would seem to be no reason why this ambiguous state of affairs should not continue in the future. A situation at law created for the benefit of the European Commission only, would no longer be a continuation of the *de facto* situation prior to the war, and consequently the provisions of Article 6 which have been invoked in the present case would be violated.

The exercise in fact before the war of the powers of the Commission on the sector in dispute can also be inferred from the Act called "Provisional Agreement of 1922". This so-called Agreement, which did not, according to the three Governments, lead to a definitive agreement because there was no agreement as regards the milestone below Galatz, is in reality a decision of the European Commission upon points unanimously accepted by the members of the Commission. Now unanimity existed as regards the observation that Roumania should exercise full and complete rights of jurisdiction on the Galatz-Braila sector and that the European Commission should continue dealing with pilotage and work on the channel exclusively. This decision could only have been adopted by the European Commission of the Danube in pursuance of Article 6 of the Statute, that is to say, in conformity with the *conditions* under which and with the *limits* within which its own powers had been exercised in the past.

This decision of the European Commission is of great moment ; it is in complete agreement with the Interpretative Protocol and with the provisions of the Statute of the Danube.

The following are the terms of this decision :

"(1) Should a breach of the Navigation Regulations of the European Commission of the Danube or a shipping accident come to the notice of a pilot during the journey between Braila and the downstream limit of Galatz (... milestone), he shall inform the pilotage agent at the first port at which the vessel calls and at which there is a pilotage agent. The latter shall transmit the pilot's report to the inspector of navigation and *send a copy to the competent territorial authority at the place where he resides.*

(2) *The territorial authority will proceed to prepare the case and, should it be necessary, to take the evidence of a pilot, the latter shall be summoned to attend at the request of the territorial authority, through the European Commission of the Danube.*

(3) *The territorial authority shall give judgment, solely in respect of the captain of the vessel or the delinquent, and not in respect of any agent of the Commission.*

(4) *In all cases in which a pilot is concerned, the territorial authority shall ex officio send to the European Commission of the Danube copies of the proceedings and of the judgment or order of non-lieu (dismissing the case) rendered by him. In other cases, these documents shall only be communicated at the express request of the Commission.*

(5) *Should the local authority learn that in this sector damage has been done to the property of the Commission, he will automatically take action and inform the Commission as stated above.*

(6) *When the documents or decisions rendered by the territorial authority have been transmitted to it, the Commission shall examine the case solely in so far as the pilot is concerned and shall take such action as may be necessary. In case of necessity it may ask the territorial authority for additional information.*

(7) *Fines inflicted as a result of sentences passed shall be collected by the local authorities or for their benefit. As an exception, in the case of damage done to property of the Commission, the fine incurred by the delinquent shall be estimated having regard to the value of such damage, the amount of which shall be fixed by the European Commission of the Danube. This sum shall be paid to the European Commission of the Danube.*

(8) *Pilots shall remain solely under the authority and jurisdiction of the European Commission of the Danube."*

If it is held that neither this decision nor the Protocol have any legal value, it must be ascertained what acts have in fact been performed by the European Commission on the Galatz-Braila sector. For only such acts have acquired legal sanction by the provisions of Article 6. And the onus of the proof is not on Roumania, but on the three Powers who contend that the European Commission has in fact exercised all its powers on the sector in dispute and that consequently the general authority of the Commission which formerly extended as far as Galatz has been extended as far as Braila.

Though the Roumanian representative has admitted in Court that technical powers have been exercised on the sector in dispute, whilst stating that the Roumanian Government has never permitted the exercise of jurisdictional powers, since Roumania has never adhered to the Treaty of London, it cannot be concluded that all powers could be lawfully exercised, because that is a matter of fact which cannot be presumed, but must be proved by the Parties who advance that argument in this case.

The Roumanian Government maintains that any interpretation of the Statute of the Danube which was directly or indirectly conducive to the application of the Treaty of London, i.e. to the extension of all the powers of the European Commission as far as Braila, amounts to a violation of its sovereign rights, since such an interpretation is not in accordance with the intention expressed in its name.

At the Conference of Versailles, in connection with the submission of the first draft of Article 346 to the Commission of Ports, Waterways and Railways, the Roumanian plenipotentiary asked for a clear and precise wording to convey the idea that the jurisdiction of the European Commission extended as far as Galatz. This observation gave rise to no protest.

At the Danube Conference, this declaration was repeated in order to state that the Treaty of London was not binding on Roumania. The discussions which took place in connection with Article 43, which became 41 (Protocol No. 62, meeting of June 15th, 1921) show that the Conference was in agreement with the views of the Roumanian plenipotentiary; for the words: "all treaties . . . which are in force" mean treaties in so far as they have been ratified by all participating States.

"The Roumanian plenipotentiary recalled that as Roumania had not adhered to the Treaty of London, it was indispensable either to explain in the actual text of Article 43 that what was meant was the maintenance of all the said international instruments in so far as the various States had adhered to them, or to include a statement to that effect in the final protocol. In whatever form, the Roumanian delegation wished to make it clear that in accepting Article 43 in its present form, it only meant to recognize as still in force those treaties to which Roumania was a Party. In

particular the Treaty of London of 1883 had not been accepted by the Roumanian Government and, in so far as it was concerned, that Treaty did not exist.

The President observed that the present wording of Article 43 should satisfy the Roumanian plenipotentiary, as it in no way modified the pre-existing situation of fact in regard to the treaties concluded by the various States which were signatories to the Statute of the Danube. That article in no way prejudiced the right of each State to regard as valid only those treaties ratified by it.

The Belgian plenipotentiary said that the interpretation given by the Roumanian plenipotentiary added nothing to the text. It was the normal and natural interpretation of it and changed nothing therein.

The Roumanian plenipotentiary noted the statements made and added that they appeared to him adequate, without making any special addition to prevent the possibility of any subsequent interpretation differing from that of the Conference."

Similar statements were made by the Roumanian plenipotentiary in connection with Article 6; and the Protocol, which ruled out the Treaty of London, gave the interpretation of that article. The British delegate on the Conciliation Commission recognized that: "It was on the strength of the Protocol that the Roumanian Government had agreed to sign the Statute of the Danube." If the Protocol, relying on which Roumania signed, has no value in law, as Roumania can only be bound in so far as she herself has willed, the conclusion is that she has not consented to the Statute of the Danube, and that a new conference must be held.

* * *

A comparison between the Statute of the Danube and the Treaty of Versailles shows some profound differences. In the first place it is to be observed that Article 5 of the Statute of the Danube, which lays down that "the European Commission retains the powers which it possessed before the war..." is a reproduction of Article 346 of the Treaty of Versailles: "The European Commission of the Danube re-assumes the powers it possessed before the war..." Now it has already been shown that the word "powers" in Article 5

of the Statute means "rights" under Article 1 of the Additional Act of Galatz of 1881. Article 346 of the Treaty of Versailles therefore refers to the rights of the European Commission conferred upon it by the treaties and international instruments relating to the Danube and its mouths.

Whilst Article 5 of the Statute of the Danube has its counterpart in Article 346 of the Treaty of Versailles, the same is not the case as regards Article 6 which by the words "under the same conditions as before and without any modification of its existing limits, over the maritime Danube", refers to the pre-war situation of fact which is converted by this clause into a situation at law. As this clause has no counterpart in the Treaty of Versailles, it is to be concluded that in regard to the extent of the authority of the European Commission, that Treaty only contemplated the situation at law as established by previous treaties and instruments.

Article 346 (Treaty of Versailles) :

"The European Commission of the Danube reassumes the powers it possessed before the war...."

Article 347 :

"From the point where the competence of the European Commission ceases, the Danube system referred to in Article 331 shall be placed under the administration of an International Commission composed as follows...."

The interpretation placed on Article 6 to the effect that it can legalize certain powers, but not others which were not in fact exercised before the war, leads to a result contrary to the Treaty of Versailles which does not allow any such consequences to be presumed, since from the mouths to the point where the authority of the European Commission of the Danube ceases, the Commission's powers are to be exercised in a uniform and identical manner.

A comparison between the articles of the Treaty of Versailles and Articles 6 and 9 of the Statute of the Danube brings out a great difference as regards the territorial extent of the authority of the European Commission. Whereas the Treaty of Versailles says that "from the point where the competence of the European Commission ceases" the Danube

is to be placed under the administration of the International Commission, thus making the territorial authority of the International Commission dependent on the point where that of the European Commission terminates—and this point being at Galatz, under Article 53 of the Treaty of Berlin, the International Commission's authority must extend from that point to Ulm; on the contrary, the Statute of the Danube, in Article 9, fixes Braila as the terminal point of the authority of the International Commission, and, in Article 6, says that the authority of the European Commission extends from the mouths of the river "to the point where the authority of the International Commission commences". The authority of the European Commission is thus extended from Galatz to Braila. In other words, whereas the Treaty of Versailles is concerned with the internationalization of the river from the point where the authority of the European Commission ends, the Statute, in Article 3, is concerned with the internationalization of the whole river by the creation of two régimes, one for the fluvial Danube under the authority of the International Commission, which extends over the fluvial Danube as far as Braila (Article 9) and the other for the maritime Danube under the authority of the European Commission, beginning at this point and extending to the mouths (Article 6).

Though the Statute of the Danube has made changes of this kind, it will be easy to show that the Conference of the Danube was not entitled to do so; for it had no right to modify the powers of the European Commission.

It is indisputable that this Conference had to draw up the Definitive Statute of the Danube, and that being so, one is tempted to believe that all the provisions of the Treaty of Versailles might be modified. The intention of the Powers was that the Commission entrusted with the drawing up of the Statute of the Danube should concern itself with the part of the river above that which had been already internationalized and placed under the authority of the European Commission.

Article 331 of the Treaty of Versailles contains the following enumeration:

"The following rivers are declared international:

The Elbe (Labe) from its confluence with the Vltava (Moldau), and the Vltava (Moldau) from Prague;

The Oder (Odra) from its confluence with the Oppa ;
The Niemen (Rußstrom-Memel-Niemen) from Grodno ;
The Danube from Ulm”

The fact that this text omits the Rhine, which is the most important of the international rivers, leads to the conclusion that the internationalization of the Danube does not apply to the portion of the river which already possesses that character, and that it is to begin at the point where the authority of the European Commission ends ; and that, consequently, the Conference of the Danube had no right to deal with the powers of that Commission.

The Statute of the Danube could not modify the provisions of the Treaty of Versailles ; for 26 Powers had taken part in that Treaty, whereas at the Convention on the Danube only twelve Powers were represented, eight with the right to vote, namely : Belgium, France, Great Britain, Greece, Italy, Roumania, Yugoslavia and Czechoslovakia, and four in an advisory capacity, namely : Germany, Austria, Bulgaria and Hungary.

Under Article 349 of the Treaty of Versailles and the corresponding articles of the other Peace Treaties, Germany, Austria, Hungary and Bulgaria had undertaken to accept the régime laid down by a conference on the Statute of the Danube. Of course, that conference could only make regulations for, and not modify, the régime of the Danube as accepted by those Powers under the Peace Treaties, particularly since the régime of the Danube does not concern particular interests, but seeks to guarantee in a uniform manner the right of navigation which, under Article 52 of the Treaty of Berlin, is “recognized as of European interest”. The navigation of the Danube therefore is incapable of two régimes, one for the Powers signatory to the Statute of the Danube and the other for the Powers signatory to the Peace Treaties.

Even though the Conference had the power to create new situations at law, it was unable to do so in the face of the opposition of the Roumanian delegate, on whose territory the right of exercising jurisdiction was being claimed :

[*Translation.*] “I consider, as I have often said, that this Conference must respect the provisions of treaties and that it must conform to such provisions.

The European Commission was constituted and kept in being by the treaties which carefully regulated its composition, its rights and its powers. The Conference cannot touch upon any of these points without going beyond its powers.

If therefore the Conference is of the opinion that this Commission was maintained by the Peace Treaties, we can only refer to provisions of earlier treaties as well as to provisions of the new treaties in so far as they relate to the organization and functions of this Commission...."

The representative of the British Government before the Conciliation Commission entirely approved the words of the Roumanian delegate :

"That shows that if you take the articles of the Treaty of Versailles and consider them critically, the framers of that Treaty must have intended that the Conference which was to meet and draw up the Definitive Statute of the Danube was to deal only with so much of the Danube as had not up till 1914 been effectively internationalized. That contention which I am laying before you is exactly the view that was taken by the Roumanian representative when he was in Paris."

And later on :

"The article in the Treaty of Versailles which is really the basis of all our work, I have already had occasion to read this morning. By it, the European Commission of the Danube reassumes the powers it possessed before the war."

The French Memorial comes to the same conclusion :

"Il apparaît clairement que l'article 346 du Traité de Versailles est toujours en vigueur et qu'il reste à l'heure actuelle la base juridique des compétences de la Commission européenne¹."

It is then the Treaty of Versailles which must be applied. In applying the provisions of the Treaty of Versailles it must be admitted that at the point where the jurisdiction of the European Commission comes to an end, the Danube system will be placed under the control of the International Commission. And since this is at Galatz, in conformity

¹ [Translation.] "It is clear that Article 346 of the Treaty of Versailles remains in force and that at the present moment it is the legal basis upon which the jurisdiction of the European Commission rests."

with Article 53 of the Treaty of Berlin, it follows that the International Commission exercises its powers from Ulm to below Galatz.

This conclusion must be arrived at because the Statute of the Danube is based on the Treaty of Versailles, and the Paris Conference could not modify the powers of the European Commission.

* * *

In order to reply to the other questions, the following points must be considered:

(a) What is the upstream limit to the powers of the European Commission?

(b) At what exact point must the line of demarcation between the two régimes be fixed?

(c) What are the powers which are exercised on the sector in dispute and over the ports of Galatz and Braila?

Article 53 of the Treaty of Berlin determines the "upstream limit" of the powers of the European Commission, that is to say the point where these powers come to an end, since it specifically states that the Commission shall exercise its powers "as far as Galatz".

On the other hand, Article 3 of the Navigation Regulations stipulates that:

"L'inspecteur est spécialement préposé à la police du bas Danube en aval de Galatz, à l'exclusion du port de Soulina¹."

The use of the expressions "below Galatz" and "with the exception of the Port of Sulina" shows that the powers of the European Commission should be exercised over the navigable channel and not over the ports or over the river banks. This principle is confirmed by the Special Instructions which were given to the Navigation Inspector of the Lower Danube and which were adopted by the European Commission of the Danube on May 30th, 1913 (Protocol No. 845).

¹ [Translation.] "The Inspector is in special charge of the policing of the Lower Danube downstream from Galatz with the exception of the Port of Sulina."

The following are the terms of these Instructions :

“§ 1.

In conformity with Article 3 of the Navigation and Police Regulations issued by the European Commission of the Danube on November 10th, 1911, and applying to that part of the Lower Danube which is *below Galatz*, the Navigation Inspector superintends the policing of the Lower Danube *with the exception of the Port of Sulina*.

The Inspector bears the character of a public officer, and his acts in relation to maritime matters within his jurisdiction have the same value as acts drawn up by the public authorities.

§ 2.

The prerogatives of the Inspector more particularly include :

The supervision of vessels moving *between Galatz and the upper limits of the Port of Sulina*; and the supervision of the towing paths as far as concerns the river police, subject to the same limits;

River pilotage service;

The supervision of work in connection with lighterage *in so far as it is carried out on the river outside the port of Sulina*;

Salvage work and the first protective measures in case of accidents *taking place on the river*.

Finally, the Inspector acts as a judicial authority of first instance, for adjudicating upon contraventions committed in defiance of the provisions of the Police and Navigation Regulations *in so far as they were committed or recorded within the limits of his jurisdiction*.

The Inspector cannot go outside the domain over which extends his jurisdiction without obtaining leave from the Commission.”

It should be noted that neither the Treaty of Berlin nor the Additional Act of Galatz of 1881 fixed the point “below Galatz” where these powers come to an end. That can be explained by the fact that the port of Galatz was on the one hand taken out of the jurisdiction of the European Commission, and, on the other hand, that it was capable of being continually enlarged to answer to the economic needs

of the country. As a result of the world war this port—the largest of a country which has almost trebled its population—was bound to develop as far as the mouths of the Pruth (71½ milestone). It is moreover unanimously admitted that the notion of a “port” does not refer to an agglomeration of buildings but a territorial area (Opinion No. 11, p. 40). The zone comprised between the Galatz-Reni railway, the Danube and the Pruth, represents the area necessary for the development of the port and for the creation of the free zones provided for by Article XXI of the Statute of the Danube. And this particularly so, since, by the incorporation of Bessarabia, the Pruth, which is a navigable waterway, no longer forms a boundary but in its entire course traverses Roumanian territory.

Moreover, according to the Roumanian Regulations of 1879, the jurisdiction of the captain of the port of Galatz extends up to the point (71½ milestone) where the powers of the customs office of the port are exercised (Article 138 of the Regulations). The point where the powers of the European Commission cease, being fixed “below Galatz”, it is from that point, in conformity with Article 347 of the Treaty of Versailles, that the International Commission of the Danube ensures the navigation of the river. The ports of Galatz and Braila should come under the port régime which has been established for ports on the international river system, as provided by Articles XX, XXI, XXII of the Statute of the Danube.

Over the Braila-Galatz sector, Roumania having always by courtesy recognized the technical powers of the European Commission of the Danube, there will be two régimes: the general régime which applies to international rivers and which respects the rights of jurisdiction of the territorial authorities, and the régime recognized *de facto* by Roumania: the pilotage services and the maintenance of the navigable channel by the European Commission of the Danube.

On these grounds, I am of the opinion:

- 1° (a) That, in accordance with the law in force, the European Commission of the Danube does not possess any powers over the Galatz-Braila sector.

- (b) That the powers of the European Commission extend on the Lower Danube as far as below Galatz, excluding that port.
- 2° That the Galatz-Braila sector and the navigable channel which crosses the ports of Galatz and Braila come under the jurisdiction of the International Commission of the Danube.
- 3° That the line of demarcation between the powers of the European Commission and those of the International Commission must be fixed at the 71½ milestone.

(Signed) DEMETRE NEGULESCO.
